

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:

ROBERT RICKETT,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK,
POLICE OFFICER EDWARD LANGSEDER (TAX
950720), AND NYPD MEMBER DOES ONE - SIX,

**PLAINTIFF DESIGNATES
BRONX COUNTY AS
THE PLACE OF TRIAL**

The basis of venue is location of
the incident.

Defendants.

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To the above-named Defendant:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
July 20, 2023

JESSICA MASSIMI

By: *Jessica Massimi*
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646-241-9800
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To: THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
NY, NY 10007

POLICE OFFICER EDWARD LANGSEDER (TAX 950720)

c/o 40th NYPD Precinct

257 Alexander Avenue

Bronx, NY 10454

NYPD MEMBER DOES 1-6

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:
ROBERT RICKETT,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK,
POLICE OFFICER EDWARD LANGSEDER (TAX
950720), AND NYPD MEMBER DOES ONE - SIX,

**PLAINTIFF DEMANDS A
TRIAL BY JURY**

Defendants.

-----X

Plaintiff, ROBERT RICKETT, by his attorney, JESSICA MASSIMI, hereby complains of
the Defendants, upon information and belief, as follows:

PARTIES

1. At the time of the civil rights violations described herein, Plaintiff, ROBERT RICKETT, was an adult resident of Bronx County, City and State of New York.
2. At all relevant times mentioned herein, Defendant City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
3. At all times hereinafter mentioned, Defendant, POLICE OFFICER EDWARD LANGSEDER (TAX 950720) was an adult male employed by the City of New York as a member of the NYPD assigned to the 40th Precinct. Defendant Langseder is currently assigned to the 40th Precinct. Defendant Langseder is sued herein in his official and individual capacities.
4. At all times hereinafter mentioned, Defendant, NYPD Member Does 1-6 ("the Doe Defendants") were adults employed by the City of New York as members of the NYPD

assigned to the 40th Precinct. The Doe Defendants are sued herein in their official and individual capacities.

5. Doe Defendants 1-3 were all men in blue NYPD uniforms.
6. Does Defendants 4 and 5 were wearing blue NYPD uniforms and appeared to be white men.
7. Doe Defendant 6 was wearing a blue NYPD uniform and appeared to be a white woman.
8. The Plaintiff timely served a Notice of Claim on the municipal Defendant and complied with all conditions precedent to commencing an action under state law.
9. At least thirty days have elapsed since service of Plaintiff's Notice of Claim and adjustment and payment thereof has been neglected or refused.
10. That the within action has been initiated within one year and ninety days of the accrual of Plaintiff's claims pursuant to New York State Law.

RELEVANT FACTS

11. On April 26, 2022, Plaintiff was lawfully present inside of apartment 3C 800 at Saint Ann's Avenue, Bronx County, City and State of New York.
12. At this time, Plaintiff locked himself inside the bathroom and called the police for help because someone else inside the apartment was threatening him with a gun.
13. Defendants Langseder and Does 1-3 arrived at the location and encountered Plaintiff's assailant outside, carrying Plaintiff's clothes and bag.
14. Defendants allowed Plaintiff's assailant to go back up to the apartment where Plaintiff was still locked in the bathroom waiting for the police to arrive to help him.
15. Despite Plaintiff's frantic requests for help from the police, Defendant Langseder and Does 1-3 arrived at that location and arrested Plaintiff based on allegations they fabricated or otherwise knew at the time of Plaintiff's arrest to be false.

16. Plaintiff was not engaged in any suspicious or illegal activity, and there was no reason for the Defendants to arrest Plaintiff.
17. Plaintiff was not involved in any activity which would have justified his arrest and there in fact existed no probable cause to justify Plaintiff's arrest.
18. Plaintiff was not engaged in any activity which would have justified the use of force against him.
19. Despite the lack of probable to arrest Plaintiff, Defendant Langseder handcuffed Plaintiff.
20. Defendants transported Plaintiff to a stationhouse of the 40th Precinct.
21. At the stationhouse, at least one of Defendant Langseder or Does 1-3 re-handcuffed Plaintiff excessively tightly.
22. Plaintiff immediately complained to this Defendant that the handcuffs were excessively tight and causing pain.
23. This Defendant then removed the handcuff on one of Plaintiff's wrists, took him to a room alone, and handcuffed him excessively tightly to a bar in the room by his left wrist.
24. Plaintiff again complained to the Defendant (believed to be Langseder or Does 1-3) that the handcuffs were still excessively tight and causing pain. Plaintiff asked the Defendant to remove the handcuffs and he refused to do so.
25. The Defendant then left Plaintiff alone in the room for several hours until Defendants transported him to Central Booking.
26. During this time, Plaintiff's left hand became visibly swollen from the excessively tight handcuffs.
27. Several hours after Plaintiff was left alone handcuffed in the room, Doe Defendants 4 and 5 came to get Plaintiff.

28. Doe Defendants 4 and 5 removed Plaintiff's handcuffs and then immediately re-handcuffed Plaintiff using different handcuffs.
29. Plaintiff immediately complained to Doe Defendants 4 and 5 that the handcuffs were again excessively tight and asked Defendants to loosen his handcuffs.
30. Doe Defendants 4 and 5 informed Plaintiff that they would not loosen his handcuffs because they expected his transport to Bronx County Central Booking to take no more than five minutes.
31. Doe Defendants 4-6 then took Plaintiff to an NYPD transport van to Bronx County Central Booking. Plaintiff continued complaining in the transport van to Doe Defendants 4-6 that his handcuffs were too tight, causing him pain, and that he needed them removed. The Doe Defendants refused to loosen or remove Plaintiff's handcuffs despite their knowledge that his handcuffs were too tight and causing him pain.
32. At Bronx County Central Booking, Plaintiff and Doe Defendants 4-6 remained in the NYPD van for over an hour, during which Plaintiff continued to complain of the excessively tight handcuffs. In response, the Defendants took no action to remove or loosen the handcuffs.
33. Eventually, Doe Defendants 4-6 took Plaintiff into Bronx County Central Booking. Defendants did not remove Plaintiff's handcuffs until after he had complained several times of severe pain.
34. As a result of Defendants actions, Plaintiff suffered several severe and permanent personal injuries including but not limited to neuropathy and pain in both wrists.
35. Plaintiff remained in the custody of the Defendants for several hours based on false allegations sworn to by the Defendants.
36. Plaintiff was eventually arraigned on a criminal complaint containing false allegations sworn to by the Defendants or which the Defendants knew to be false.

37. Defendants willfully and intentionally fabricated evidence by falsely memorializing claims to have witnessed Plaintiff acting in concert with his assailant and that a gun was found in his jacket.
38. Defendants forwarded these false allegations to the Bronx County District Attorney's office in order to justify Plaintiff's arrest, and to justify, bring about and cause Plaintiff to be deprived on his liberty and to be criminally prosecuted.
39. Plaintiff was eventually released from custody and forced to return to Court pursuant to the false allegations made by Defendants before the charges against Plaintiff were dismissed on grounds consistent with his innocence.
40. Despite Plaintiff's innocence and Defendants' knowledge that their allegations were false, Defendants provided false information and testimony to the grand jury in support of Plaintiff's prosecution despite the fact that there was no justifiable or legal basis for them to do so.
41. At no time did Defendants have a legal basis to stop or arrest Plaintiff, nor was it reasonable for the Defendants to believe that such a basis existed.
42. At no time did Defendants have probable cause to seize, detain or arrest the Plaintiff nor was it reasonable for the Defendants to believe that such cause existed.
43. Any no time was there any justification for the use of force against Plaintiff, much less the level of force applied by the Defendants.
44. At no time did any of the defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the heretofore conduct engaged in by their fellow officers.

45. That at all times relevant herein, the Defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION
(Section 1983 False Arrest Claim Against the Individual Defendants)

46. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

47. The Individual Defendants willfully and intentionally seized, searched, detained, and arrested Plaintiff, and caused him to be imprisoned, without probable cause, and without a reasonable basis to believe such cause existed.

48. Plaintiff had not been engaged in any criminal conduct, nor was he engaged in any conduct that could reasonably be viewed as criminal nor a basis to justify his arrest.

49. Despite the absence of sufficient legal cause, Plaintiff was arrested and jailed.

50. By so doing, the Individual Defendants subjected Plaintiff to false arrest and imprisonment, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth Amendment of the United States Constitution.

51. By reason thereof, the Individual Defendants have violated 42 U.S.C §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

SECOND CAUSE OF ACTION
(Section 1983 Denial of a Fair Trial Claim Against the Individual Defendants)

52. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

53. The Individual Defendants willfully and intentionally fabricated evidence by falsely memorializing claims to have witnessed Plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the Bronx County District Attorney's Office in order to justify the arrest of Plaintiff, and to justify, bring about and cause Plaintiff to be deprived of their liberty and to be criminally prosecuted.
54. By so doing, the Individual Defendants subjected the Plaintiff to denial of a fair trial and violation of his right to due process by fabricating evidence and otherwise providing prosecutors with a materially false and misleading version of events, and thereby violated Plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.
55. By reason thereof, the Individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

THIRD CAUSE OF ACTION
(Section 1983 Malicious Prosecution Against the Individual Defendants)

56. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.
57. The Individual Defendants willfully and intentionally caused Plaintiff to be subjected to criminal prosecution by falsely memorializing claims to have witnessed Plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the Bronx County District Attorney's Office, which resulted in the Bronx County District Attorney's Office presenting criminal charges against Plaintiff without probable cause for said prosecution.

58. The criminal prosecution caused Plaintiff to suffer a deprivation of liberty before Plaintiff's criminal charges were terminated favorably.

59. By so doing, the Individual Defendants caused Plaintiff to be maliciously prosecuted, and thereby violated Plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

60. By reason thereof, the Individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

**FOURTH CAUSE OF ACTION
(Section 1983 Excessive Force Against the Individual Defendants)**

61. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

62. As a result of the Defendants' conduct, Plaintiff was subjected to excessive force.

63. By reason thereof, the Individual Defendants violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

**FIFTH CAUSE OF ACTION
(Section 1983 *Monell* Claim Against the Municipal Defendant)**

64. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

65. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

66. Defendant City of New York had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, abuse of arrest powers, fabrication of evidence, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD.
67. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the Plaintiff herein.
68. Defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the Plaintiff's arrest.
69. The acts complained of herein are a direct and proximate result of the failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers.
70. The failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers constitutes gross and deliberate indifference to unconstitutional conduct by those officers.

71. The official policies, practices and customs of the City of New York and the NYPD alleged herein violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to the Constitution of the United States.
72. All of the acts and omissions by the Individual Defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures, and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.
73. Therefore the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of the Plaintiff's rights in particular.
74. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

**SIXTH CAUSE OF ACTION
(Civil Rights Violations Pursuant to New York State Law)**

75. Plaintiff repeats the allegations contained in each of the foregoing paragraphs as though stated fully herein.
76. Plaintiff was subjected to false arrest, excessive force, malicious prosecution, denial of due process and fair trial, through the defendants' use of fabricated evidence and the making of false statements.

77. At no time did Defendants have any legal basis for arresting Plaintiff, subjecting him to prosecution, or commencing criminal process against them, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.
78. The Defendants are therefore liable under New York law to Plaintiff for false arrest, malicious prosecution, denial of due process and fair trial, and excessive force.
79. By reason thereof, Defendants have caused Plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the Plaintiff demands judgment against the Individual Defendants and the City of New York as follows:

- i. actual and punitive damages against the Individual Defendants in an amount to be determined at trial;
- ii. actual damages in an amount to be determined at trial against the City of New York;
- iii. statutory attorney's fees pursuant to, inter alia, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
July 20, 2023

JESSICA MASSIMI

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